



Notification Waiver Determination

Laundy – Woy Woy Hotel

Acquisition	Laundy Woy Freehold Pty Ltd and Laundy Woy Trading Pty Ltd (together, Laundy) applied for a notification waiver in respect of its proposed acquisition of the freehold land and operating business known as the Woy Woy Hotel, located at 33–39 The Boulevard, Woy Woy NSW, from Amal Trustees Pty Limited as trustee for Harvest Pub Fund Trust 2 and Harvest Pub Operations 2 Limited, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	4 June 2026

Parties to the Acquisition	The acquirer, Laundy, operates a portfolio of licensed hospitality venues across New South Wales, including pubs and hotels located in metropolitan and regional areas. Laundy currently owns and operates the Bayview Hotel located at 2/16, The Boulevard, Woy Woy, NSW. The Woy Woy Hotel is an existing licensed hotel business comprising gaming, food and beverage, bottle shop and hospitality services. It is located at 33-39 The Boulevard, Woy Woy, NSW. The Acquisition involves the transfer of ownership of both the freehold land and the operating hotel business to Laundy. Woy Woy is a coastal town in the Central Coast region of the New South Wales state of Australia. Woy Woy has two pubs, the Woy Woy Hotel and the Bayview Hotel, and the nearest pub outside of Woy Woy is in Umina.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information currently before it, the ACCC considers that the Acquisition may raise competition issues. In particular: there is significant horizontal overlap between Laundy and the Woy Woy Hotel in the supply of on-premises hospitality products and services (including liquor for on-site consumption, dining and gaming) in the Woy Woy area and the acquisition would result in Laundy owning both pubs in Woy Woy.

	b. there is uncertainty regarding the level of competitive constraint likely to be exerted by alternative suppliers of on-premises hospitality products and services (including liquor for on-site consumption, dining and gaming) in Woy Woy and the surrounding area including from the Country Club and RSL Club in Woy Woy and the Ocean Beach Hotel in Umina. The ACCC considers that these potential competition issues warrant consideration through the notification process, including further information gathering and consultation with third parties. Given the above, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the Acquisition meeting the notification thresholds. The ACCC notes that Laundry has acknowledged that the proposed acquisition may meet the notification thresholds. For these reasons, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act